

SENATE No. 134

The Commonwealth of Massachusetts

PRESENTED BY:

Adam Gómez

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to establish an acquired brain injury advisory board.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Adam Gómez</i>	<i>Hampden</i>	
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>2/1/2025</i>
<i>Dylan A. Fernandes</i>	<i>Plymouth and Barnstable</i>	<i>2/11/2025</i>
<i>Jacob R. Oliveira</i>	<i>Hampden, Hampshire and Worcester</i>	<i>2/11/2025</i>
<i>Paul R. Feeney</i>	<i>Bristol and Norfolk</i>	<i>2/20/2025</i>
<i>Sal N. DiDomenico</i>	<i>Middlesex and Suffolk</i>	<i>2/20/2025</i>
<i>Michael O. Moore</i>	<i>Second Worcester</i>	<i>3/12/2025</i>
<i>Ryan C. Fattman</i>	<i>Worcester and Hampden</i>	<i>5/1/2025</i>
<i>John J. Marsi</i>	<i>6th Worcester</i>	<i>6/11/2025</i>

SENATE No. 134

By Mr. Gomez, a petition (accompanied by bill, Senate, No. 134) of Adam Gomez, James B. Eldridge, Dylan A. Fernandes, Jacob R. Oliveira and other members of the Senate for legislation to establish an acquired brain injury advisory board. Children, Families and Persons with Disabilities.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 89 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to establish an acquired brain injury advisory board.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. An acquired brain injury advisory board shall be established to collaborate
2 with appropriate state secretariats and their agencies, members of the legislature, individuals with
3 acquired brain injuries and their family members, providers, clinicians, advocacy groups and
4 other key stakeholders to review, advise, and report on services and supports, and public policy
5 there under for individuals with acquired brain injuries and their families.

6 SECTION 2. Said advisory board shall consist of 2 members of the Senate, 1 of whom
7 shall be appointed by the President, 1 of whom shall be appointed by the Minority Leader; 2
8 members of the House of Representatives, 1 of whom shall be appointed by the Speaker, 1 of
9 whom shall be appointed by the Minority Leader; the Secretary of Health and Human Services or

10 their designee; the Secretary of the Executive Office of Public Safety or their designee; the
11 Secretary of Elder Affairs or their designee; the Secretary of Veterans Services or their designee;
12 the Commissioner of the Department of Public Health or their designee; 2 members from the
13 MassAbility, 1 who shall be the Commissioner or their designee, 1 who shall be appointed by the
14 Commissioner; the Commissioner of the Department of Developmental Services or their
15 designee; the Commissioner of the Department of Mental Health or their designee; 2 members of
16 the MassHealth, 1 who shall be the Director or their designee, and 1 who shall be the Director of
17 Home and Community-Based Services Waiver Administration or their designee; the
18 Commissioner of the Division of Insurance or their designee, the Executive Director of the
19 Center for Health Information and Analysis (CHIA) or their designee, the Chief Executive
20 Officer at the Brain Injury Association of Massachusetts, Inc. or their designee; and 8 members
21 who shall be appointed by the Governor, 2 of whom shall be family members, caretakers or
22 significant others of a person with acquired brain injury, 2 of whom shall be individuals with
23 acquired brain injury, including but not limited to individuals who have experienced traumatic
24 brain injury, stroke, brain tumors or other disorders, 1 of whom shall be a community based
25 provider of services to individuals with acquired brain injury 1 of whom shall be a community
26 based provider of services to individuals with acquired brain injury serving minorities and other
27 underserved populations, 1 of whom shall be from a disability advisory group or a protection and
28 advocacy representative, 1 of whom shall be a clinician.

29 SECTION 3. Said advisory board directives shall include, but are not limited to,
30 reviewing data concerning the epidemiology of acquired brain injury and the needs of
31 individuals with acquired brain injury and their families; reviewing efforts to increase access to
32 rehabilitative, residential and integrated community based support services for persons with

33 acquired brain injury; monitoring the implementation of the acquired brain injury commission
34 recommendations regarding the improvement of such services; and reviewing ongoing state
35 public policy initiatives and state funding.

36 SECTION 4. Said advisory board shall file a biennial report with the Governor, the
37 Secretary of the Executive Office of Health and Human Services, the Senate President, the
38 Speaker of the House of Representatives, and the clerks of the Senate and House of
39 Representatives. Said report shall include but not be limited to a summary of ongoing needs of
40 individuals with acquired brain injury, the status of progress made in increasing access to
41 rehabilitative, residential and integrated community-based support services for individuals with
42 acquired brain injury; and the status of progress made in implementing the acquired brain injury
43 commission recommendations regarding the improvement of such services.

44 SECTION 5. Said advisory board shall meet quarterly, at minimum, and may establish
45 subcommittees as necessary to carry out its objectives.